

IMPORTANT: THIS IS A NOTICE OF A COURT CASE TO EVICT YOU - PLEASE READ CAREFULLY
IMPORTANTE: ESTA ES UNA NOTIFICACION DE UN CASO EN CORTE RESPECTO A PRECEDIMIENTOS DE
DESALOJO - POR FAVOR DE LEER CON CUIDADO!

SUMMARY PROCESS (EVICTION)
SUMMONS AND COMPLAINT



MASSACHUSETTS
TRIAL COURT

eSUMMONS DOCUMENT ID (For Housing Court Use Only)

25-5337

COMPLAINT
SHERIFF

DOCKET NO. (court use only)

COURT DEPARTMENT
Civil

COURT DIVISION/COUNTY
Suffolk Superior

CASE TYPE (Applicable only to case filed in Boston Municipal Court or District Court)

☐ Residential - Nonpayment of Rent
(Affidavit pursuant to G.L. c. 186, §31
required at time of filing)

☐ Residential - Cause Other Than Nonpayment of Rent

☐ Residential - No Cause (No Fault)

☒ Commercial
☐ Foreclosure

To: Defendant(s)/Tenant(s)/Occupant(s): NEDG - BOSTON, LLC

Important: Any individual named must be at least 18 years old.

Address: 257 TURNPIKE RD, SUITE 330 City/Town: SOUTH BOROUGH, MA Zip Code: 01772

E-Mail Address: _____ Telephone: _____

THIS IS A COMPLAINT TO EVICT YOU. YOU DO NOT NEED TO LEAVE YOUR PREMISES UNTIL ORDERED TO DO SO
BY THE COURT. YOU WILL BE SERVED WITH A SEPARATE NOTICE THAT WILL INFORM YOU
WHEN AND WHERE YOU MUST APPEAR IN COURT.

You are required to appear in Court to defend against the complaint of:

Plaintiff/Landlord/Lessor/Owner: 1 MILK MT LLC

Address: 430 PARK AVE, SUITE 201 City/Town: NEW YORK, NY Zip Code: 10002

E-Mail Address: _____ Telephone: _____

This complaint states that you occupy the premises at ONE MILK ST. BOSTON, MA 02109, which
brings you within the jurisdiction of this Court. The Plaintiff/Landlord/Lessor/Owner is asking the Court to evict you because:
NON PAYMENT OF RENT AND USE AND OCCUPANCY

The Plaintiff/Landlord/Lessor/Owner claims unpaid rent or "use and occupancy" (or both) to date in the total amount
of: \$35,351.74. (If rent or "use and occupancy" (or both) is claimed, Plaintiff/Landlord/Lessor/Owner must complete
the "account annexed" below or attach a rent ledger.)

☒ Check here if the Plaintiff/Landlord/Lessor/Owner also claims any rent or "use and occupancy" (or both) that becomes
due and is unpaid after the complaint is filed.

ACCOUNT ANNEXED (itemize)

Exhibit C - attached

BRIAN J. MAHONEY

Printed Name of Plaintiff/Landlord/Lessor/Owner or Attorney

Brian J. Mahoney

Signature of Plaintiff/Landlord/Lessor/Owner or Attorney

33 ARCH ST, SUITE 3120, BOSTON, MA

Address of Plaintiff/Landlord/Lessor/Owner or Attorney

BMAHONEY@FOXROTHSLTD.COM

E-Mail of Plaintiff/Landlord/Lessor/Owner or Attorney

617-848-4027

Telephone

707442

BBO #

To the Sheriff of our several counties, or their Deputies, or any constable of any City or Town within said Commonwealth,
Greetings: We command you to summon the within named defendant(s)/tenant(s)/occupant(s) to appear as herein ordered.
WITNESS:

Michael D. Ricciuti

First Justice or Chief Justice

John R. F.

Clerk Magistrate

Service By: NOVEMBER 19, 2025

Entry Date: DECEMBER 1, 2025

Plaintiff/Landlord/Lessor/Owner MUST Provide Entry Date for Proper Service

NOTICE TO ALL PARTIES: If you need a free interpreter or reasonable accommodations, please call the Court Clerk's Office. The Clerk's Office may also be able to provide you with information about available resources or services, such as the Lawyer for the Day Program. For information about emergency help for housing costs, visit: <https://www.mass.gov/how-to/apply-for-raft-emergency-help-for-housing-costs>, or call 211 for help.

NOTICE TO PLAINTIFF/LANDLORD/LESSOR/OWNER: The officer must complete the below return of service. Service must be made on each defendant no later than the seventh day and no earlier than the thirtieth day before the Entry Date. In appropriate cases, proper evidence of the Notice to Quit must be provided upon the filing of this Complaint. A P.O. Box will not be accepted as an address for the Plaintiff.

NOTICE TO EACH DEFENDANT/TENANT/OCCUPANT(S): After this case is filed with the Court, you will be served a separate Notice with information about when and where you must appear in court, and the type of court event that will be conducted. If you do not receive a Notice, please contact the Court Clerk's Office. You (or your attorney) must participate in all Court events to present your defense and any claims. You (or your attorney) must also file a written Answer to this Complaint. An "Answer" is your written response stating the reason(s) why you should not be evicted and may also include claims you have against the plaintiff.

You must file (eFile, deliver or mail) your Answer with the Court Clerk's Office and serve (deliver or mail) a copy to the plaintiff (or plaintiff's attorney) at the address shown in this summons. eFiling can be accessed at <http://www.efilema.com>. An Answer may not be emailed to the Court. The Court's Notice will also include the deadline by which the Answer must be received by the Court Clerk's Office and received by the plaintiff (or the plaintiff's attorney). If you do not file and serve an Answer, or if you fail to appear at your Court event, the Court may issue rulings and a judgment against you.

OFFICER'S RETURN

On



Worcester County Sheriff's Office P.O. Box 1066 Worcester, MA 01613
(508) 752-1100

and

11/19/2025

I hereby certify and return that on 11/18/2025 at 3:36 PM I served a true and attested copy of the SUMMARY PROCESS SUMMONS AND COMPLAINT WITH EXHIBITS in this action in the following manner: To wit, by delivering in hand to MELISSA MAZA, , agent, person in charge at the time of service for NEDG-BOSTON, LLC at 257 TURNPIKE ROAD SUITE 330 SOUTHBOROUGH, MA 01772 . Service Fee (\$30.00) Attest (\$5.00) Mileage (\$15.04) Mailing (\$3) (\$3.00) Office Expense (\$20.00) Conveyance (\$4.50) Total: \$77.54

Steven Trottier
Deputy Sheriff